

Lecture: Direct Action

Democracy beyond the ballot box

Tom Hanna

2026-08-03

Table of contents

1. Agenda and Reminders	2
1.1 Agenda	2
1.2 Reminders	2
1.3 Final Exam Rules (be on time!)	2
2. Direct Action: A Citizen's Toolkit	2
2.1 Understanding Your Rights in a Democracy	2
3. Today's Roadmap	3
3.1 The First Amendment "Package"	3
4. A Spectrum of Direct Action (1/5)	3
4.1 Organized Contact & Lobbying	3
5. A Spectrum of Direct Action (2/5)	3
5.1 Protest & Marches	3
6. A Spectrum of Direct Action (3/5)	4
6.1 Citizen Journalism	4
7. A Spectrum of Direct Action (4/5)	4
7.1 Filming the Police	4
8. A Spectrum of Direct Action (5/5)	4
8.1 Civil Disobedience	4
8.2 Risk vs. Reality	4
8.3 Risk vs. Reality (cont.)	5
9. Case Study: The Texas Battleground	5
9.1 Texas Protections: Turner v. Driver (2017)	5
9.2 Texas Hot Topic: SB 2972 (Oct 2025)	5
10. Your Voice is Your Power	6
10.1 Authorship and License	6

1. Agenda and Reminders

1.1 Agenda

- Today: Direct Action: A Citizen's Toolkit, lecture and discussion
- Tomorrow:
 - Module 4 Quiz
 - Ethics of Citizenship

1.2 Reminders

- All Module 3 materials due today
- All Module 4 materials due tomorrow
- All late work due by August 6, no exceptions
- Finals Schedule
 - Monday-Tuesday 8 AM class: August 5, 7 AM --- GRRRRRRR!
 - Monday-Tuesday 10:30 AM class: August 6, 9 AM
 - Monday-Tuesday 1 PM class: August 6, 1 PM

1.3 Final Exam Rules (be on time!)

- Be on time!
 - Not the regular class times!
 - If no one is here within 10 minutes of start time, I will leave
 - Once the first student finishes, no one else will be allowed to start the exam
 - The time limit will end after 1 hour 50 minutes to allow the next class to enter
- There will be sufficient time for accommodations for people who arrive on time - it is your responsibility to do so

2. Direct Action: A Citizen's Toolkit

2.1 Understanding Your Rights in a Democracy

3. Today's Roadmap

- **The First Amendment “Package”**
 - Why it's a toolkit, not just a list.
 - **A Spectrum of Direct Action**
 - From conventional to confrontational.
 - **Case Study: The Texas Battleground**
 - How these rights are being tested right here, right now.
-

3.1 The First Amendment “Package”

-  **Freedom of Speech**
 - The *message*. Your right to criticize, support, or propose an idea.
 -  **Freedom of the Press**
 - The *amplifier*. Distributing Information.
 -  **Right of Assembly**
 - The *group power*. Collective strength.
 -  **Right to Petition**
 - The *goal*. Present problems seeking solutions
-

4. A Spectrum of Direct Action (1/5)

4.1 Organized Contact & Lobbying

- **What it is:** Citizens organizing to contact legislators and officials with a specific “ask.”
 - **Examples:** Coordinated email campaigns, phone banks, student groups scheduling meetings at the Capitol in Austin.
 - **1A Connection:** This is the most direct, modern form of the **Right to Petition**.
-

5. A Spectrum of Direct Action (2/5)

5.1 Protest & Marches

- **What it is:** The classic form. A group gathers in a public space to show collective support or opposition.
- **Examples:** Rallies in a public park, marches to City Hall, picket lines.

- **1A Connection:** This is a combination of the **Right of Assembly** and **Freedom of Speech**.
-

6. A Spectrum of Direct Action (3/5)

6.1 Citizen Journalism

- **What it is:** Using modern technology to document and disseminate information about public events, acting as a check on power.
 - **Examples:** Live-tweeting a city council meeting, blogging an analysis of a new law, posting a video of a protest online.
 - **1A Connection:** This is a pure exercise of the **Freedom of the Press**.
-

7. A Spectrum of Direct Action (4/5)

7.1 Filming the Police

- **What it is:** A specific and crucial form of citizen journalism. Recording the on-duty actions of public officials to ensure accountability.
 - **1A Connection:** This is a *vital* exercise of First Amendment rights.
 - Courts have repeatedly affirmed this is a **clearly established right** (combining Speech and Press).
 - You have this right as long as you are in a public place and **not interfering** with an officer's lawful duties.
-

8. A Spectrum of Direct Action (5/5)

8.1 Civil Disobedience

- **What it is:** The non-violent, public, and *intentional* breaking of a law to protest a greater injustice.
 - **Examples:** 1960s lunch counter sit-ins, a group of activists blocking a highway to protest climate policy.
 - **1A Connection:** This is where First Amendment protection **ENDS**.
-

8.2 Risk vs. Reality

- **Organized Contact:**

- Low Risk. High Effort.
- **Protest:**
 - Moderate Risk. Can be high-risk if it's shut down or if counter-protestors arrive.

8.3 Risk vs. Reality (cont.)

- **Filming Police:**
 - Legally: Low Risk (it's a protected right).
 - Situationally: Can be high-risk of confrontation or arrest for "interference."
 - **Civil Disobedience:**
 - Guaranteed High Risk. Arrest is the point.
-

9. Case Study: The Texas Battleground

These rights are not just history. They are being fought for and defined right now, in Texas.

- **Texas Constitution:** Article 1, Sections 8 & 27 protect speech and assembly, just like the First Amendment.
 - **The Courts:** Where these rights are defined.
 - **The Legislature:** Where these rights are often challenged.
-

9.1 Texas Protections: Turner v. Driver (2017)

This is the case that matters for filming the police in Texas.

- **What:** A man in Fort Worth, Philip Turner, was arrested for filming a police station from a public sidewalk.
 - **The Ruling:** The 5th Circuit Court of Appeals (our federal court) ruled in his favor.
 - **The Precedent:** The court explicitly affirmed a **First Amendment right to record the police**, calling it a "basic, vital, and well-established liberty."
-

9.2 Texas Hot Topic: SB 2972 (Oct 2025)

This battleground is right here on your campus.

- **The Law:** 2025 - SB 2972. One section: **ban all "expressive activities" on college campuses** between 10 p.m. and 8 a.m.
- **The Action:** Student groups and civil liberties organizations challenged in court
- **The Ruling (Oct 2025):** Just last month, a federal judge *blocked* that part of the law.

- **The Quote: “The First Amendment does not have a bedtime.”** (David Alan Ezra, U.S. District Judge)
-

10. Your Voice is Your Power

- The First Amendment is a **toolkit**, not just a list.
- “Direct action” is a **spectrum** of engagement.
- Understanding your rights is the first step to **using them**.

10.1 Authorship and License

Do not submit to Quizlet, Chegg, Coursehero, or other similar commercial websites.

- Author: Tom Hanna
- Website: tomhanna.me
- License: This work is licensed under a Creative Commons Attribution-NonCommercial-ShareAlike 4.0 International License.

Unless otherwise noted all images are the original work of the author or produced by the author using Perplexity or Gemini.